

Santoshi Rai vs Prashant Rai on 3 November, 2023

Author: Dwarka Dhish Bansal

Bench: Dwarka Dhish Bansal

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IN THE HIGH COURT OF MADHYA PRADESH
AT JABALPUR
BEFORE
HON'BLE SHRI JUSTICE DWARKA DHISH BANSAL
ON THE 3rd OF NOVEMBER, 2023
MISC. CIVIL CASE No. 2070 of 2023

BETWEEN: -

SANTOSHI RAI S/O PRASHANT RAI, AGED ABOUT 26
YEARS, R/O VILLAGE DOGARRANJHI POLICE STATION
KANHIWADA DISTRICT SEONI (MADHYA PRADESH)

(BY SHRI R.N. DWIVEDI, ADVOCATE)

AND

PRASHANT RAI S/O SHRI KAUSHAL PRASAD RAI, AGED
ABOUT 27 YEARS, R/O DEVRI RTEKA POLICE STATION
AND THESIL DHANORA DISTRICT SEONI (MADHYA
PRADESH)

(BY SHRI ABHINAV KUMAR TIWARI, ADVOCATE)

This application coming on for admission this day, the
following:

ORDER

The present petition has been filed by the wife/applicant under Section 24 of the Code of Civil Procedure, who has prayed for the transfer of the petition bearing Case No.RCS HM No.48/2022 filed by respondent/husband u/s Section 13 of Hindu Marriage Act from the Court of 1st Addl. Distt. Judge, Lakhnadon, District Seoni to Family Court, Seoni.

2. Learned counsel for the applicant submits that the applicant is facing difficulty in participation of the proceedings pending in the Court of 1st Additional District Judge, Lakhnadon, District Seoni and it would be convenient to her to attend proceedings in the Family Court at Seoni. He further submits that five cases viz.(i) under Section 12 of the Protection of Women from Domestic Violence Act; (ii) Section 9 of the Hindu Marriage Act; (iii) Section 7 of the Hindu Minority and Guardianship Act; (iv) Section 125 of Cr.P.C are pending adjudication in the Courts at Seoni and Section 498-A of IPC regd. on the application of wife is pending adjudication before JMFC, Lakhnadon. In support of his submissions, learned counsel placed reliance on the decisions of the Supreme Court in the case

of Tejalben v. Mihirbhai Bharatbhai Kothari (2016) 3 SCC 69; Ruchi Rawat v. Principal Judge, Family Court, Etah and another 2022 SCC Online SC 2036; Manjula Singh Chouhan v. Vishal Singh Chouhan (2019) 13 SCC 660 & Sumita Singh v. Kumar Sanjay and Anr. (2001) 10 SCC 41 and prays for transfer of petition from the Court of 1st Addl. Distt. Judge, Lakhnadon, District Seoni to Family Court, Seoni.

3. Learned counsel appearing for respondent/husband opposed the prayer of transfer on several grounds. In support of his submissions, he placed reliance on the decision of High Court of Punjab and Haryana at Chandigarh in the case of Manpreet Kaur v. Gurbaksh Singh TA 173 of 2022 (O & M) decided on 26.05.2022.

4. Considering the submissions of learned counsel for the parties and in the light of aforesaid judgment of Supreme Court in the case of Sumita Singh (supra) and taking into consideration the convenience of wife, the case under Section 13 of Hindu Marriage Act filed by respondent/husband bearing RCS HM No. 48/2022 pending in the Court of 1st Addl. Distt. Judge, Lakhnadon deserves to be and is hereby directed to be transferred to Family Court, Seoni.

5. A copy of this order be sent to the Court of 1st Addl. Distt. Judge, Lakhnadon to be placed in the file of RCS HM No. 48/2022. A copy of this order be also sent to the Family Court, Seoni.

6. With the above, this application is allowed and disposed off.

7. Pending application(s), if any, shall stand disposed off.

(DWARKA DHISH BANSAL) JUDGE Pallavi